Treaties, Land and Indigenous Sovereignty

42 key historical facts stated in Jeff Kisling's blog posts on this topic, each checked against an outside source.

Treaties, Land and Indigenous Sovereignty

Posts trace how Native land was taken and how it is being reclaimed: the papal bulls behind the Doctrine of Discovery, Indian removal, the Fort Laramie treaties and the seizure of the Black Hills (with the 1980 Sioux Nation ruling), the US-Dakota War and Mankato executions, allotment under the Dawes Act, and the Indian Reorganization Act. They also cover Iowa's Native history: Sauk, Meskwaki and Ioway cessions and removal, the Meskwaki land purchase of 1857, and recent land returns. Contemporary threads include UNDRIP, NDN Collective's LANDBACK campaign at Mount Rushmore, the Mashpee trust-land fight, Oak Flat, and land returns by Quakers and local governments.

42 facts checked against outside sources, 7 of them corrected (the posts had a detail slightly wrong; the corrected version is shown). Each fact lists the source that confirms it and the posts that state it. The wording is a plain summary, not a quotation from the posts.

Facts

1. 1452-06-18

Pope Nicholas V's bull Dum Diversas (June 18, 1452) authorized King Afonso V of Portugal to invade, capture and subjugate 'Saracens and pagans', reduce them to perpetual slavery and take their property; it and the 1455 bull Romanus Pontifex are among the papal documents later grouped as the Doctrine of Discovery.

- **Source:** Dum Diversas (Wikipedia); Vatican formally rejects 'Doctrine of Discovery' after Indigenous calls (PBS NewsHour (AP))
- **In the posts:** A Minute to Repudiate the Doctrine Of Discovery (2019-05-15); A Letter to Faith Communities (2019-05-14); Wet'suwet'en and the law (2020-02-13); Spiritual Transition (2023-05-17)

2. 1493-05-04

Pope Alexander VI's bull Inter caetera (May 4, 1493) granted Spain's monarchs lands 'discovered and to be discovered' to the west; Indigenous leaders pressed Pope Francis in 2022 to rescind such bulls, and the Vatican formally repudiated the Doctrine of Discovery on March 30, 2023.

- **Source:** Inter caetera (Wikipedia); Vatican formally rejects 'Doctrine of Discovery' after Indigenous calls (PBS NewsHour (AP))
- **In the posts:** Pope Francis Apology (2022-04-02)

3. 1830-05-28

President Andrew Jackson signed the Indian Removal Act on May 28, 1830, authorizing exchanges of land and the removal of Native nations to lands west of the Mississippi River.

- **Source:** Indian Removal Act (National Archives (DocsTeach))
- **In the posts:** Life and Death Struggles Continue Today (2019-12-29); Trump administration’s attack on Indian Country (2019-04-13)

4. 1831

In Cherokee Nation v. Georgia (1831) the Supreme Court held that the Cherokee Nation was not a foreign state, describing tribes instead as 'domestic dependent nations'.

- **Source:** Cherokee Nation v. Georgia, 30 U.S. 1 (1831) (Justia)
- **In the posts:** THE TREATIES OF FORT LARAMIE, 1851 AND 1868 (2020-05-11)

5. 1836

The Ioway (Báxoje) were assigned a reservation near the Great Nemaha River on the Kansas–Nebraska border in 1836, and an 1838 treaty forced them from what became Iowa.

- **Source:** Iowa Tribe of Kansas and Nebraska (Wikipedia); Honoring the Ioway Tribe of Johnson County (Our Iowa Heritage)
- **In the posts:** The Missing Map (2026-08-11)

6. 1838–1839

During the Cherokee removal (the Trail of Tears) of 1838–39, about 16,000 Cherokee were forced to walk up to 1,000 miles west; roughly 4,000 died.

> ***Note:*** *One post (quoting other sources) gives about 17,000 removed and 2,500–6,000 deaths; estimates vary.*

- **Source:** Indian Removal Act (National Archives (DocsTeach))
- **In the posts:** Life and Death Struggles Continue Today (2019-12-29)

7. 1842-10-11

In the Sac and Fox treaty of October 11, 1842, signed at Agency, Iowa, the Sauk and Meskwaki ceded their remaining Iowa lands and were required to leave Iowa by 1845 for Kansas.

- **Source:** Sac and Fox treaty of 1842 (Wikipedia)
- **In the posts:** The Missing Map (2026-08-11); Grammar of Silence (2026-08-09)

8. 1851-09-17

The first Treaty of Fort Laramie, signed September 17, 1851 with eight Plains nations including the Sioux, Cheyenne, Arapaho and Crow, defined tribal territories and allowed safe passage and roads; the promised $50,000 a year for 50 years was cut by the Senate to 10 years.

- **Source:** Treaty of Fort Laramie (1851) (Wikipedia)
- **In the posts:** Treaty of Fort Laramie, 1851 (2020-05-11); THE TREATIES OF FORT LARAMIE, 1851 AND 1868 (2020-05-11); Plenty Coups and Radical Hope (2019-12-30)

9. 1857-07-13 (corrected)

After Iowa passed a law in 1856 allowing them to stay, the Meskwaki pooled their own annuity money and bought their first 80 acres in Tama County on July 13, 1857, the start of the Meskwaki Settlement.

> ***Correction:*** *One post says the Meskwaki 'bought back Tama County land starting 1856'; 1856 was the Iowa law permitting them to remain, and the first purchase was in 1857.*

- **Source:** The Meskwaki Nation's History; American Indian Removal and Relocation (primary source set) (State Historical Society of Iowa)
- **In the posts:** Introduction to the Hub (2026-06-21); The Missing Map (2026-08-11)

10. 1862-08-18

The US-Dakota War began on August 18, 1862, when Dakota facing starvation and late annuity payments attacked the Lower Sioux Agency in the Minnesota River valley; it lasted about five weeks, ending September 26, 1862.

- **Source:** Dakota War of 1862 (Wikipedia)
- **In the posts:** Dakota 38 (2024-12-27); Multigenerational trauma and the US-Dakota War of 1862 (2022-07-07); Scaffold (2017-05-31)

11. 1862-12-26

After military trials that sentenced 303 Dakota men to death, 38 were hanged together at Mankato, Minnesota, on December 26, 1862, under President Lincoln's order, before an estimated 4,000 spectators; it remains the largest mass execution in US history.

- **Source:** The Trials & Hanging (Minnesota Historical Society)
- **In the posts:** Dakota 38 (2016-01-20); Forgive Everyone Everything (2018-12-26); Dakota 38 + 2 (2022-12-27); Mount Rushmore Anti-Trump Rally (2020-07-03); Multigenerational trauma and the US-Dakota War of 1862 (2022-07-07)

12. 1863-05

After the war, about 2,000 Dakota were held at Fort Snelling, and in May 1863 some 1,300 were shipped by steamboat to the Crow Creek Reservation in Dakota Territory, expelling them from Minnesota.

- **Source:** Dakota War of 1862 (Wikipedia)
- **In the posts:** Dakota 38 (2024-12-27); Multigenerational trauma and the US-Dakota War of 1862 (2022-07-07)

13. 1865 (corrected)

The '+2' in 'Dakota 38+2' refers to Shakopee and Medicine Bottle, who were hanged in 1865 at Fort Snelling.

> ***Correction:*** *A post (quoting Native News Online) says the two others were also hanged in Mankato; they were hanged at Fort Snelling in 1865.*

- **Source:** The Trials & Hanging (Minnesota Historical Society)
- **In the posts:** Dakota 38 + 2 (2022-12-27); Forgive Everyone Everything (2023-12-27)

14. 1868-04-29 (corrected)

Article 12 of the 1868 Fort Laramie Treaty said no later cession of reservation land would be valid unless signed by three-fourths of the adult Indian men concerned.

> ***Correction:*** *A post says the 1868 treaty itself had to be signed by three-fourths of the males; the three-fourths rule applied to any future cession.*

- **Source:** United States v. Sioux Nation of Indians, 448 U.S. 371 (1980) (Justia); Treaty of Fort Laramie (1868) (Wikipedia)
- **In the posts:** THE TREATIES OF FORT LARAMIE, 1851 AND 1868 (2020-05-11)

15. 1868-04-29

The Fort Laramie Treaty of April 29, 1868 ended Red Cloud's War, closed the Bozeman Trail forts, and created the Great Sioux Reservation, including the Black Hills, for the Sioux's 'absolute and undisturbed use and occupation'.

- **Source:** Fort Laramie Treaty (1868) (National Archives); Treaty of Fort Laramie (1868) (Wikipedia)
- **In the posts:** Sioux Treaty of 1868 (2020-05-11); THE TREATIES OF FORT LARAMIE, 1851 AND 1868 (2020-05-11); Mount Rushmore Anti-Trump Rally (2020-07-03); Eviction Notice: Dakota Access and Keystone XL pipelines (2020-07-22)

16. 1868-05-07

In a second Fort Laramie treaty in May 1868, the Crow gave up about 30 million acres of their 1851 territory, keeping a reservation of about 8 million acres.

> ***Note:*** *The post (quoting Jonathan Lear) puts the 1851 Crow territory at 33 million acres; Wikipedia's figures imply about 38 million.*

- **Source:** Crow Indian Reservation (Wikipedia)
- **In the posts:** Plenty Coups and Radical Hope (2019-12-30)

17. 1874–1877

In 1874 Custer's expedition confirmed gold in the Black Hills, bringing in miners; after the 1876 Battle of the Little Bighorn the US took the Black Hills in 1877.

- **Source:** Fort Laramie Treaty (1868) (National Archives)
- **In the posts:** Sioux Treaty of 1868 (2020-05-11); THE TREATIES OF FORT LARAMIE, 1851 AND 1868 (2020-05-11); Mount Rushmore Anti-Trump Rally (2020-07-03)

18. 1877-02-28

On February 28, 1877, Congress ratified the Manypenny Agreement, taking the Black Hills; the Sioux had been pressured by a cutoff of rations ('sell or starve').

- **Source:** Congress ratified Manypenny Agreement on the Black Hills (JURIST); United States v. Sioux Nation of Indians (Wikipedia)
- **In the posts:** Mount Rushmore Anti-Trump Rally (2020-07-03); UN experts raise concern over charges against US indigenous leader and rights defender (2020-12-18)

19. 1887-02-08

The Dawes (General Allotment) Act, approved February 8, 1887, split reservations into individual allotments and sold 'surplus' land to non-Indians; Indian-held land fell from about 138 million acres to 48 million acres by 1934.

- **Source:** Dawes Act (1887) (National Archives); Dawes Act (Encyclopedia of the Great Plains (Univ. of Nebraska))
- **In the posts:** Stolen land (2026-09-23); Trump administration's attack on Indian Country (2019-04-13); Indigenous children stolen to open the West (2021-07-14)

20. 1890-12-29 (corrected)

On December 29, 1890, the US 7th Cavalry killed an estimated 250–300 Lakota, including many women and children, at Wounded Knee Creek on the Pine Ridge Reservation.

> ***Correction:*** *One post (quoting another source) says 150 were killed; another correctly says up to 300.*

- **Source:** Wounded Knee massacre (Wikipedia)
- **In the posts:** Life and Death Struggles Continue Today (2019-12-29); End Police Violence (2023-05-03)

21. 1903-01-05

In 1867 the Medicine Lodge Treaty required three-fourths of adult men to approve land cessions; in Lone Wolf v. Hitchcock (January 5, 1903) the Supreme Court upheld Congress's breakup of the Kiowa, Comanche and Apache reservation without that consent, ruling that Congress has 'plenary authority' over tribal relations, including power to abrogate treaties.

- **Source:** Lone Wolf v. Hitchcock, 187 U.S. 553 (1903) (Justia)
- **In the posts:** Stolen land (2026-09-23)

22. 1927–1941

Mount Rushmore, proposed by South Dakota historian Doane Robinson, was carved by sculptor Gutzon Borglum from October 4, 1927 until work stopped on October 31, 1941.

- **Source:** Construction of Mount Rushmore (Wikipedia)
- **In the posts:** Mount Rushmore Anti-Trump Rally (2020-07-03)

23. 1934-06-18

The Indian Reorganization Act, signed June 18, 1934, slowed allotment and let the Interior Secretary take land into trust for tribes; in Carcieri v. Salazar (2009) the Supreme Court limited this to tribes 'under federal jurisdiction' in 1934.

- **Source:** Indian Reorganization Act (Wikipedia); Mashpee Wampanoag Tribe continues fight for land (Cultural Survival)
- **In the posts:** Trump administration’s attack on Indian Country (2019-04-13); Colonization 2020 (2020-04-09)

24. 1973-02-27

The American Indian Movement and Oglala Lakota occupied Wounded Knee, South Dakota, for 71 days, from February 27 to May 8, 1973.

- **Source:** Wounded Knee Occupation (Wikipedia)
- **In the posts:** Resistance Gathering On The Oglala Homeland (2018-02-19); Protest Rights at Stake (2025-02-24)

25. 1980-06-30

In United States v. Sioux Nation of Indians (June 30, 1980), the Supreme Court ruled that the 1877 seizure of the Black Hills was a taking requiring just compensation, upholding $17.1 million plus interest (about $105 million); the Sioux refused the money because accepting it would end their claim to the land, and the account now exceeds $1 billion.

- **Source:** United States v. Sioux Nation of Indians, 448 U.S. 371 (1980) (Justia); United States v. Sioux Nation of Indians (Wikipedia)
- **In the posts:** Stolen land (2026-09-23)

26. 2005

Jim Miller's 2005 dream of riding to the site of the Mankato hanging led to the annual Dakota 38+2 Memorial Ride of about 330 miles from Lower Brule, South Dakota, to Mankato; Silas Hagerty of Smooth Feather filmed it in the 2012 documentary 'Dakota 38'.

- **Source:** Dakota 38 documentary: healing journey of the Dakota people (Wilder Utopia)
- **In the posts:** Dakota 38 (2016-01-20); Dakota 38 + 2 (2022-12-27); Dakota 38 (2024-12-27)

27. 2007-09-13

Article 10 of UNDRIP says Indigenous peoples shall not be forcibly removed from their lands, and that no relocation may take place without their free, prior and informed consent and agreement on fair compensation.

- **Source:** United Nations Declaration on the Rights of Indigenous Peoples
- **In the posts:** We in the U.S. should act in solidarity with the Wet'suwet'en peoples (2020-02-09); Wet'suwet'en Chiefs' voyage on Mohawk Territory (2020-02-29); We don't give up (2021-10-14)

28. 2007-09-13

Article 8 of UNDRIP gives Indigenous peoples and individuals the right not to be subjected to forced assimilation or destruction of their culture.

- **Source:** United Nations Declaration on the Rights of Indigenous Peoples
- **In the posts:** United Nations Filing on Missing Children (2020-06-16)

29. 2007-09-13

The UN General Assembly adopted the Declaration on the Rights of Indigenous Peoples on September 13, 2007, with four countries, including the United States, voting against; the US announced its support on December 16, 2010.

- **Source:** United Nations Declaration on the Rights of Indigenous Peoples Background (Advisory Council on Historic Preservation)
- **In the posts:** We in the U.S. should act in solidarity with the Wet'suwet'en peoples (2020-02-09); Indigenous Youth, Leadership and Suicide (2020-03-17)

30. 2013

Boulder Friends (Quaker) Meeting in Colorado approved a minute repudiating the Doctrine of Discovery in 2013.

- **Source:** Minutes of Conscience: Indigenous Concerns (Friends General Conference)
- **In the posts:** A Minute to Repudiate the Doctrine Of Discovery (2019-05-15)

31. 2014-12 (corrected)

A rider in the Fiscal Year 2015 National Defense Authorization Act, signed in December 2014, authorized trading 2,422 acres of national forest land at Oak Flat, sacred to the Apache, to Resolution Copper.

> ***Correction:*** *Posts describe it as legislation in 'the National Defense Authorization Act in 2015'; it was the FY2015 act, signed in December 2014.*

- **Source:** Resolution Copper (Wikipedia)
- **In the posts:** Apache Stronghold (2019-12-07); This Moment (2019-12-08)

32. 2017

In 2017 the Walker Art Center removed Sam Durant's sculpture 'Scaffold' from the Minneapolis Sculpture Garden after Dakota protests over its reference to the 1862 Mankato gallows; the wood was later buried, not burned.

- **Source:** 'Scaffold' sculpture's wood to be buried, Dakota official says (MPR News)
- **In the posts:** Scaffold (2017-05-31); Dakota elder leadership and Scaffold (2017-06-05)

33. 2020-03-27

The Mashpee Wampanoag were federally recognized in 2007 and had 321 acres taken into trust in 2015; on March 27, 2020 the Bureau of Indian Affairs told the tribe the land would be taken out of trust after an appeals court ruling based on Carcieri v. Salazar.

- **Source:** Feds revoking reservation status for tribe's 300 acres (Daily Hampshire Gazette (AP)); Mashpee Wampanoag Tribe continues fight for land (Cultural Survival)
- **In the posts:** Colonization 2020 (2020-04-09)

34. 2020-07-03

NDN Collective president Nick Tilsen was arrested after Land Defenders blocked a road to Mount Rushmore during President Trump's July 3, 2020 visit, and was charged with four felonies and three misdemeanors; UN human rights experts raised concern about the charges in December 2020.

- **Source:** UN experts raise concern over charges against US indigenous leader and rights defender (UN News); LANDBACK: Ȟesápa (NDN Collective)
- **In the posts:** UN experts raise concern over charges against US indigenous leader and rights defender (2020-12-18); Building Resilient Communities: A Moral Responsibility (2020-12-20); July 4 Nexus (2021-07-04)

35. 2020-10-12

NDN Collective launched its LANDBACK campaign on Indigenous Peoples' Day, October 12, 2020, making the closure of Mount Rushmore and return of public lands in the Black Hills its cornerstone.

- **Source:** Get involved: the LANDBACK movement (Cultural Survival); LANDBACK: Ȟesápa (NDN Collective)

- **In the posts:** LANDBACK Introduction (2021-07-26); About LANDBACK (2021-07-26); Four Indigenous Climbers Arrested “LANDBACK” (2021-07-06)

36. 2022

Seven acres of the former Melloy family Two Horse Farm in Johnson County, Iowa, overlooking the Iowa River, went to the Iowa Tribe of Kansas and Nebraska, with the rest going to Johnson County Conservation; it was the tribe's first land in Iowa since its forced removal.

> ***Note:*** *Sources differ on how to describe the donor (the Melloy family via the Iowa Natural Heritage Foundation, with Johnson County Conservation arranging it) and the year (2021 or 2022).*

- **Source:** Honoring the Ioway Tribe of Johnson County (Our Iowa Heritage); Returning home: one family's gift... (Iowa Natural Heritage Foundation); Iowa Tribe of Kansas and Nebraska (Wikipedia)
- **In the posts:** Introduction to the Hub (2026-06-21)

37. 2022

The documentary 'Lakota Nation vs. United States', about the Lakota struggle for the Black Hills, was directed by Jesse Short Bull and Laura Tomaselli and premiered at the 2022 Tribeca Festival.

- **Source:** Lakota Nation vs. United States (Tribeca Festival)
- **In the posts:** Lakota Nation vs. the United States (2021-09-22)

38. 2024-09-27

The Woolman at Sierra Friends Center, a Quaker property near Nevada City, California that once housed the John Woolman School, sold more than 230 acres to the Nisenan tribe's nonprofit CHIRP for $2.4 million; the sale closed September 27, 2024.

- **Source:** Update: Woolman Center Sells Land to Indigenous Tribe (Friends Journal)
- **In the posts:** Conscious act of land return to Indigenous peoples (2024-01-30); LANDBACK by Friends (2024-01-31); Letter supporting LANDBACK (2024-02-08)

39. 2025-09

Great Plains Action Society sought to buy about an acre on Maiden Lane in downtown Iowa City for an Indigenous-led resilience and innovation hub; the Iowa City Council gave first approval to the rezoning in September 2025, and a spring equinox celebration in March 2026 marked the start of the hub.

- **Source:** Indigenous-led Great Plains Action Society plans community hub in Iowa City (The Gazette (Cedar Rapids)); A spring equinox celebration in Iowa City marked the start of an Indigenous-led community hub (Little Village)
- **In the posts:** Introduction to the Hub (2026-06-21); Embodied Land (2026-08-07)

40. Undated (corrected)

Iowa's Poweshiek, Wapello and Tama counties are named for 19th-century Meskwaki (Fox) chiefs; Appanoose County is named for a Sauk chief.

> ***Correction:*** *An Iowa land acknowledgement quoted in several posts lists Appanoose among 'famous Meskwaki chiefs'; Appanoose was a Sauk chief.*

- **Source:** Other Indian Chiefs of Iowa (IAGenWeb)
- **In the posts:** Quaker Indian Boarding Schools 2 (2019-06-12); Toward Right Relationships with Native People (2019-07-07); Iowa Land Acknowledgement Statement (2019-07-22)

41. Undated

Sales and leases of land taken from the Dakota after 1862 raised nearly $580,000 for the University of Minnesota.

- **Source:** University of Minnesota probes its history with Native people (MPR News)
- **In the posts:** Multigenerational trauma and the US-Dakota War of 1862 (2022-07-07)

42. Undated (corrected)

The Sac and Fox Tribe of the Mississippi in Iowa (Meskwaki Nation) is the only federally recognized tribe in Iowa; its Settlement now covers more than 8,100 acres, and it has more than 1,450 enrolled members.

> ***Correction:*** *A 2026 post gives about 7,000 acres and about 1,400 members.*

- **Source:** The Meskwaki Nation's History
- **In the posts:** The Missing Map (2026-08-11); Quaker Indian Boarding Schools 2 (2019-06-12)

Not yet verified

These statements appear in the posts but could not be checked against an outside source during this pass. They are not confirmed and not shown to be wrong.

- The Iowa City Council approved Great Plains Action Society's ownership of the Maiden Lane hub property in October 2025. In the posts: Introduction to the Hub
- The GPAS Hub is one of only three Indigenous-owned properties in Iowa. In the posts: Introduction to the Hub
- Under the 1851 Fort Laramie Treaty the United States recognized Crow rights to 33 million acres. In the posts: Plenty Coups and Radical Hope
- The 566 federally recognized tribes hold more than 50 million acres (about 2% of the US), and about 9 million acres have been returned to trust, about 10% of what was lost under the Dawes Act. In the posts: Trump administration’s attack on Indian Country